

		<i>supplemental</i>, declaration. This is confusing because there is no explanation for why the original declaration is being cited. The Motion for Final Approval will be heard on 1/7/2027 at 2:00 p.m. in Department CX102. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys' fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys' fees award will not be made until final approval, the Court is unlikely to approve attorneys' fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Additionally, at the Final Approval hearing, each Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Each Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiffs to give notice of this Court's ruling, including to the LWDA, within five (5) court days, and file proof of service. 2. OSC re Monetary Sanctions Against Class Counsel The Court is awaiting a declaration explaining counsel's failure to comply with the Court's 11/6/2025 order.
108	Higgins vs. Spigen Inc. 2024-01376537	Motion for Approval of PAGA Settlement The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$190,000 PAGA settlement. The court has the following questions and comments: 1. Was plaintiff's untimely declaration (ROA 98, 100) submitted to the LWDA? Plaintiff must file with the court an actual proof of service identifying the specific document(s) served on the LWDA, when plaintiff served the document(s), and how service was effected. <u>As to the settlement:</u>

		2. Plaintiff should provide the estimated high, low, and average individual awards for aggrieved employees. 3. The escalator provision (§ 8) provides two options. Prior to approval, the parties must determine (1) whether the escalator provision has been triggered, (2) the final gross settlement amount, and (3) the final PAGA Period. 4. The “Released Parties” provision (§ 1.27) is vague and/or overbroad. It includes unrelated, ambiguous and/or unidentified third parties which should be removed, including “insurers, reinsurers, risk groups,” “contractors,” “and/or affiliated companies, and managing agents; and any and all agents, legal representatives, and/or attorneys, in their representative or individual capacity.” 5. Plaintiff’s counsel must disclose whether counsel has any fee-splitting arrangement with any other counsel, including the exact percentages, or confirm none exists. 6. Consistent with the settlement (§ 6.1), all parties must state, in declarations filed with the court, whether they are aware of any class, representative or other collective action in any other court that asserts claims similar to those asserted in this case. If any such actions are known to exist, the declarations shall state the name and case number of any such case and the procedural status of that case, and describe the impact of the proposed settlement on that case. 7. Plaintiff’s counsel seeks attorneys’ fees totaling 1/3 of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve an attorneys’ fees award that exceeds 30% of the gross settlement amount. Plaintiff’s counsel should address in the supplemental filing whether any such unique circumstances exist here. 8. Plaintiff seeks an enhancement award of \$10,000. The court is unlikely to approve an enhancement award in light of plaintiff’s substantial individual settlement. Plaintiff should address in the supplemental filing whether unique circumstances justify additional compensation here. 9. Plaintiff’s counsel seeks \$17,476.07 in costs. Plaintiff’s counsel should submit invoices supporting the mediation and expert costs. 10. Unclaimed funds are sent to the State Controller after 120 days. §§ 4.4.1, 4.4.3. This should be at least 180 days. <u>As to the notice:</u> 11. The notice letter should be revised consistent with the above.
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		documents (e.g., revised settlement agreement, revised notice, revised proposed order) and any settlement provisions revised via amendment. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service. Plaintiff must also serve the LWDA with any supplemental brief and any amended settlement documents, and file a proof of service.
109	Renteria vs. TTS Engineering Inc, 2024-01442426	Motion for Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Edgardo Campos’s Motion for Approval of PAGA Settlement is GRANTED. On 11/26/2024, Plaintiffs Francisco Renteria and Edgardo Campos, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant TTS Engineering, Inc. (ROA #2.) The operative complaint is the first amended complaint, filed on 1/30/2025, which added a PAGA cause of action and alleged a total of 9 causes of action, as follows: 1. Failure to Pay Minimum Wages [Cal. Lab. Code §§ 204, 1194, 1194.2, and 1197]; 2. Failure to Pay Overtime Compensation [Cal. Lab. Code §§ 1194 and 1198]; 3. Failure to Provide Meal Periods [Cal. Lab. Code §§ 226.7, 512]; 4. Failure to Authorize and Permit Rest Breaks [Cal. Lab. Code §§ 226.7]; 5. Failure to Indemnify Necessary Business Expenses [Cal. Lab. Code § 2802]; 6. Failure to Timely Pay Final Wages at Termination [Cal. Lab. Code §§ 201-203]; 7. Failure to Provide Accurate Itemized Wage Statements [Cal. Lab. Code § 226]; 8. Unfair Business Practices [Cal. Bus. & Prof. Code §§ 17200, et seq.]; and 9. Civil Penalties Under PAGA [Cal. Lab. Code § 2699, et seq.]. (ROA #15.) On 2/21/2025, the Court entered an order on the parties’ stipulation, (1) dismissing Plaintiffs’ class allegations without prejudice, (2) submitting Plaintiffs’ individual claims—including their individual PAGA claims—to